



UTAH COUNTY ATTORNEY

Jeffrey S. Gray, Utah County Attorney

Chad E. Grunander, Chief Deputy

Christopher D. Ballard, Chief of Staff

Christine Scott, Major Crimes Division Chief

Ryan McBride, General Crimes Division Chief

Paul Jones, Civil Division Chief

Steven G. Adams, Bureau of Investigations Chief

Haley Christensen, Office Manager

Tammy Paynter, Confidential Assistant

100 East Center Street, Suite 2100

Provo, Utah 84606

p: 801.851.8026

f: 801.851.8051

Potential Witness in the Charlie Kirk/Tyler Robinson case

December 15, 2025

Re: Statements to media concerning the Tyler Robinson prosecution

To all potential witnesses in the case of *State v. Tyler Robinson*:

The Utah County Attorney's Office has an ethical obligation to "exercise reasonable care to prevent investigators, law enforcement personnel," and "persons assisting or associated with the prosecutor," Utah R. Prof. Cond. 3.8(e), from making public comments which "have a substantial likelihood of materially prejudicing" the trial process in criminal cases, *id.* R. 3.6(a). The judge in this case emphasized this duty in a recent court order and extended the class of persons that the prosecution must warn to include "all witnesses" who may be called at a hearing or trial. A copy of the order is attached. The intent of this ethical duty and the judge's order is to ensure that the defendant receives a fair trial by an impartial jury.

Potential witnesses should know that they have no obligation to speak with the media. However, if someone chooses to speak with the media or make statements that may be disseminated by means of public communication, there are certain topics that they should avoid entirely because those topics are likely to undermine the right to a fair trial. These topics include:

- the character, credibility, reputation or criminal record of a party, suspect in a criminal investigation or witness, or the identity of a witness, or the expected testimony of a party or witness;
- the possibility of a plea of guilty to the offense or the existence or contents of any confession, admission or statement given by a defendant or suspect or that person's refusal or failure to make a statement;
- the performance or results of any examination or test or the refusal or failure of a person to submit to an examination or test, or the identity or nature of physical evidence expected to be presented;
- any opinion as to the guilt or innocence of a defendant or suspect in a criminal case or proceeding;



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- information that the lawyer knows or reasonably should know is likely to be inadmissible as evidence in a trial and that would, if disclosed, create a substantial risk of prejudicing an impartial trial; or
- the fact that a defendant has been charged with a crime, unless there is included therein a statement explaining that the charge is merely an accusation and that the defendant is presumed innocent until and unless proven guilty;
- Opinions about the defendant's guilt or the proper punishment;
- Statements about any constitutional rights the defendant has asserted – like the right to remain silent, the right to an attorney, and the right to trial. These are rights afforded to all citizens and no one should be punished for asserting them; and
- Any other statements that could risk violating the defendant's right to a fair trial.

Please carefully consider this guidance and follow it precisely if you choose to speak with the media. Feel free to contact our office with any questions. We also encourage you to consult with an attorney if you choose to speak to the media.

Sincerely,

/s/ Ryan McBride

General Crimes Division Chief

Enclosures (2): Pre-trial Publicity Order; Utah Rule of Professional Responsibility 13-3.

Rule 3.6. Trial Publicity.

Effective: 11/1/2005

(a) A lawyer who is participating or has participated in the investigation or litigation of a matter shall not make an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter.

(b) Notwithstanding paragraph (a), a lawyer may state:

(b)(1) the claim, offense or defense involved and, except when prohibited by law, the identity of the persons involved;

(b)(2) information contained in a public record;

(b)(3) that an investigation of a matter is in progress;

(b)(4) the scheduling or result of any step in litigation;

(b)(5) a request for assistance in obtaining evidence and information necessary thereto;

(b)(6) a warning of danger concerning the behavior of a person involved, when there is reason to believe that there exists the likelihood of substantial harm to an individual or to the public interest; and

(b)(7) in a criminal case, in addition to subparagraphs (1) through (6):

(b)(7)(i) the identity, residence, occupation and family status of the accused;

(b)(7)(ii) if the accused has not been apprehended, information necessary to aid in apprehension of that person;

(b)(7)(iii) the fact, time and place of arrest; and

(b)(7)(iv) the identity of investigating and arresting officers or agencies and the length of the investigation.

(c) Notwithstanding paragraph (a), a lawyer may make a statement that a reasonable lawyer would believe is required to protect a client from the substantial undue prejudicial effect of recent publicity not initiated by the lawyer or the lawyer's client. A statement made pursuant to this paragraph shall be limited to such information as is necessary to mitigate the recent adverse publicity.

(d) No lawyer associated in a firm or government agency with a lawyer subject to paragraph (a) shall make a statement prohibited by paragraph (a).

Comment

[1] It is difficult to strike a balance between protecting the right to a fair trial and safeguarding the right of free expression. Preserving the right to a fair trial necessarily entails some curtailment of the information that may be disseminated about a party prior to trial, particularly where trial by jury is involved. If there were no such limits, the result would be the practical nullification of the protective effect of the rules of forensic decorum and the exclusionary rules of evidence. On the other hand, there are vital social interests served by the free dissemination of information about events having legal consequences and about legal proceedings themselves. The public has a right to know about threats to its safety and measures aimed at ensuring its security. It also has a legitimate interest in the conduct of judicial proceedings, particularly in matters of general public concern. Furthermore, the subject matter of legal proceedings is often of direct significance in debate and deliberation over questions of public policy.

[2] Special rules of confidentiality may validly govern proceedings in juvenile, domestic relations and mental disability proceedings, and perhaps other types of litigation. Rule 3.4(c) requires compliance with such rules.

[3] This Rule sets forth a basic general prohibition against a lawyer's making statements that the lawyer knows or should know will have a substantial likelihood of materially prejudicing an adjudicative proceeding. Recognizing that the public value of informed commentary is great and the likelihood of prejudice to a proceeding by the commentary of a lawyer who is not involved in the proceeding is small, this Rule applies only to lawyers who are, or who have been, involved in the investigation or litigation of a case and their associates.

[4] Paragraph (b) identifies specific matters about which a lawyer's statements would not ordinarily be considered to present a substantial likelihood of material prejudice and should not in any event be considered prohibited by the general prohibition of paragraph (a). Paragraph (b) is not intended to be an exhaustive listing of the subjects upon which a lawyer may make a statement, but statements on other matters may be subject to paragraph (a).

[5] There are, on the other hand, certain subjects that are more likely than not to have a material prejudicial effect on a proceeding, particularly when they refer to a civil matter triable to a jury, a criminal matter or any other proceeding that could result in incarceration. These subjects relate to:

(i) the character, credibility, reputation or criminal record of a party, suspect in a criminal investigation or witness, or the identity of a witness, or the expected testimony of a party or witness;

(ii) in a criminal case or proceeding that could result in incarceration, the possibility of a plea of guilty to the offense or the existence or contents of any confession, admission or statement given by a defendant or suspect or that person's refusal or failure to make a statement;

(iii) the performance or results of any examination or test or the refusal or failure of a person to submit to an examination or test, or the identity or nature of physical evidence expected to be presented;

(iv) any opinion as to the guilt or innocence of a defendant or suspect in a criminal case or proceeding that could result in incarceration;

(v) information that the lawyer knows or reasonably should know is likely to be inadmissible as evidence in a trial and that would, if disclosed, create a substantial risk of prejudicing an impartial trial; or

(vi) the fact that a defendant has been charged with a crime, unless there is included therein a statement explaining that the charge is merely an accusation and that the defendant is presumed innocent until and unless proven guilty.

[6] Another relevant factor in determining prejudice is the nature of the proceeding involved. Criminal jury trials will be most sensitive to extrajudicial speech. Civil trials may be less sensitive. Nonjury hearings and arbitration proceedings may be even less affected. This Rule will still place limitations on prejudicial comments in these cases, but the likelihood of prejudice may be different depending on the type of proceeding.

[7] Finally, extrajudicial statements that might otherwise raise a question under this Rule may be permissible when they are made in response to statements made publicly by another party, another party's lawyer or third persons, where a reasonable lawyer would believe a public response is required in order to avoid prejudice to the lawyer's client. When prejudicial statements have been publicly made by others, responsive statements may have the salutary effect of lessening any resulting adverse impact on the adjudicative proceeding. Such responsive statements should be limited to contain only such information as is necessary to mitigate undue prejudice created by the statements made by others.

[8] See Rule 3.8(f) for additional duties of prosecutors in connection with extrajudicial statements about criminal proceedings.

**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**PROTECTION ORDER
RE: PRE-TRIAL AND TRIAL
PUBLICITY**

Case No. 251403576

Judge Tony F. Graf, Jr.

Defendant Tyler James Robinson is charged with one count of aggravated murder and other felonies.

This case has generated and is likely to continue to generate significant pre-trial and trial publicity. That publicity can compromise Defendant Tyler James Robinson's right to due process of law as well as both parties' rights to a fair and impartial jury trial. Pre-trial publicity is of particular concern because it can taint the prospective jury pool.

To protect the parties' fundamental rights, the court, on its own motion, issues the following:

PROTECTION ORDER

Lawyers who have participated, who are now participating, or who will yet participate in the investigation or litigation of this case in any way shall abide strictly by Rule 3.6. of the Utah Rules of Professional Conduct. Rule 3.6 prohibits a lawyer from making "an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter." Utah R. Prof. Cond. 3.6(a).

Lawyers who have participated, who are now participating, or who will yet participate in the investigation or litigation of this case shall not intentionally, knowingly, or recklessly permit a witness, investigator, consultant, staff member, or other member of the prosecution or defense team to make extrajudicial statements which, if made by the lawyer, would violate Rule 3.6. To that end, lawyers participating in the investigation or litigation of this case shall inform all witnesses, investigators, consultants, staff members, or other members of the prosecution or defense teams about the prohibitions contained in this order.

This protection order applies to lawyers who are not participating in the investigation or litigation of this case, but who are associated with the Utah County Attorney's office or associated with defense counsels' firm or firms. *See* Utah R. Prof. Cond. 3.6(d). Court staff is also ordered to not make public statements that would violate the provisions of this order.

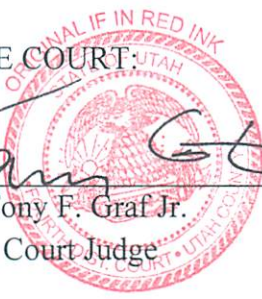
This order does not prohibit lawyers from making statements permitted by Rule 3.6. *See* Utah R. Prof. Cond. 3.6(b)(c).

Dated this 16th day of September, 2025.

BY THE COURT:



Judge Tony F. Graf Jr.
District Court Judge



From: Ryan McBride [REDACTED]@UtahCounty.gov>
Sent: Thursday, January 22, 2026 1:09 PM
To: Chad Grunander [REDACTED]@UtahCounty.gov>
Subject: FW: Publicity Order RE: Tyler Robinson case

Another notice of the publicity order. This email is an example that we continue to disseminate the order as we learn of new witnesses.

From: [REDACTED]@utahcounty.gov>
Sent: Thursday, January 22, 2026 10:47 AM
To: [REDACTED]@gmail.com
Subject: RE: Publicity Order RE: Tyler Robinson case

Hi [REDACTED],

I spoke with my team. Could you please share the Publicity order and other documents with the rest of your team that was at the event with you. If you have any additional questions, please let me know.

I have also attached a link to fill out the Utah Office for Victims of Crime application. Go ahead and fill that out. Let me know if you have any questions.

<https://crimevictim.utah.gov/victim-financial-assistance/application-process/>

Thank you,



[REDACTED]

Victim/Witness Coordinator
Utah County Attorney's Office
100 E Center Street, Suite 2
Provo, Utah 84606

From: [REDACTED]
Sent: Tuesday, January 13, 2026 11:37 AM
To: [REDACTED]@gmail.com' [REDACTED]<[\[REDACTED\]@gmail.com](mailto:[REDACTED]@gmail.com)>
Subject: Publicity Order RE: Tyler Robinson case

Hello [REDACTED],

You have been identified as a potential witness in the Tyler Robinson case, and the judge has made an order regarding discussion of this case with the media. Please see the attached documents from the court and let us know if you have any questions.

Thank you,



[REDACTED]
Victim/Witness Coordinator
Utah County Attorney's Office
100 E Center Street, Suite 2
Provo, Utah 84606

From: Ryan McBride [REDACTED]@UtahCounty.gov>
Sent: Monday, January 26, 2026 4:38 PM
To: Chad Grunander [REDACTED]@UtahCounty.gov>
Subject: FW: Tyler Robinson

From: Ryan McBride
Sent: Monday, January 26, 2026 11:16 AM
To: [REDACTED] [@atf.gov](#); [REDACTED] [@utah.gov](#)
Cc: [REDACTED] [@atf.gov](#) [REDACTED] [@atf.gov](#); [REDACTED] [@atf.gov](#); [REDACTED] [@atf.gov](#)
[REDACTED] [@atf.gov](#) [REDACTED] [@atf.gov](#); [REDACTED] [@atf.gov](#) [REDACTED] [@atf.gov](#)
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[REDACTED] [@atf.gov](#); Christopher Ballard [REDACTED] [@utahcounty.gov](#)
Subject: Tyler Robinson

Agent [REDACTED],

Thank you for our conversation last week and for providing me the contact information for the analysts/labs who have work on Tyler Robinson/Charlie Kirk case.

I write for three purposes:

- (1) To request discovery of the full case files for all work performed on this case. We are required to obtain and disseminate all case files in discovery to the defense. This includes all reports, raw data, notes, images, and other materials generated or relied upon by all analysts to work on the case. These materials should be provided to the Utah State Bureau of Investigation, Sgt. [REDACTED], included here, can assist in collecting these materials. I have attached a Discovery Obligations letter which was previously sent.
- (2) The judge has issued a preservation order, which prohibits any destruction or alteration of evidence in this case. If testing may alter the evidence, we have to follow a process before the testing can proceed. That process is to notify the defense of the testing, allow them time to object, and if an objection is made, we have to seek court approval. With this in mind, do not perform any testing that may destroy, consume, or alter any evidence in this case without following this process and notifying my office of the testing and getting approval. I have attached a Preservation Letter which was previously sent.

(3) The judge has issued a publicity order which prohibits certain communications with the media. I have attached the publicity order. In line with this order, please consult your agency's legal counsel before making any statement to the media. The attorneys on our prosecution team are happy to discuss the order as well. Results of testing should not be disclosed publicly. I have attached a letter describing pre-trial publicity obligations, Rule 3.6 which governs pre-trial publicity, and the two publicity orders the court has issued in this case.

To all of you who have worked on this case, thank you. Your expedited work, professionalism, and expertise are exemplary. We are so appreciative of the tremendous efforts you and so many others have made in this important case.

Agent [REDACTED], I apologize for my lack of understanding of your role. It appears I directed my previous correspondence to Agent [REDACTED]. Please disseminate this email and the attached materials to all departments conducting testing in this case. I also ask that you disseminate the publicity orders and the "Letter to all witnesses" file to all ATF agents who have worked on this case.

Sincerely,



Ryan McBride
General Crimes Division Chief
Utah County Attorney's Office
100 East Center St., Ste. 2100
Provo, Utah 84606
(801) 851-8026



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Potential Witness in the Charlie Kirk/Tyler Robinson case

December 15, 2025

Re: Statements to media concerning the Tyler Robinson prosecution

To all potential witnesses in the case of *State v. Tyler Robinson*:

The Utah County Attorney's Office has an ethical obligation to "exercise reasonable care to prevent investigators, law enforcement personnel," and "persons assisting or associated with the prosecutor," Utah R. Prof. Cond. 3.8(e), from making public comments which "have a substantial likelihood of materially prejudicing" the trial process in criminal cases, *id.* R. 3.6(a). The judge in this case emphasized this duty in a recent court order and extended the class of persons that the prosecution must warn to include "all witnesses" who may be called at a hearing or trial. A copy of the order is attached. The intent of this ethical duty and the judge's order is to ensure that the defendant receives a fair trial by an impartial jury.

Potential witnesses should know that they have no obligation to speak with the media. However, if someone chooses to speak with the media or make statements that may be disseminated by means of public communication, there are certain topics that they should avoid entirely because those topics are likely to undermine the right to a fair trial. These topics include:

- the character, credibility, reputation or criminal record of a party, suspect in a criminal investigation or witness, or the identity of a witness, or the expected testimony of a party or witness;
- the possibility of a plea of guilty to the offense or the existence or contents of any confession, admission or statement given by a defendant or suspect or that person's refusal or failure to make a statement;
- the performance or results of any examination or test or the refusal or failure of a person to submit to an examination or test, or the identity or nature of physical evidence expected to be presented;
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- information that the lawyer knows or reasonably should know is likely to be inadmissible as evidence in a trial and that would, if disclosed, create a substantial risk of prejudicing an impartial trial; or
- the fact that a defendant has been charged with a crime, unless there is included therein a statement explaining that the charge is merely an accusation and that the defendant is presumed innocent until and unless proven guilty;
- Opinions about the defendant's guilt or the proper punishment;
- Statements about any constitutional rights the defendant has asserted – like the right to remain silent, the right to an attorney, and the right to trial. These are rights afforded to all citizens and no one should be punished for asserting them; and
- Any other statements that could risk violating the defendant's right to a fair trial.

Please carefully consider this guidance and follow it precisely if you choose to speak with the media. Feel free to contact our office with any questions. We also encourage you to consult with an attorney if you choose to speak to the media.

Sincerely,

/s/ Ryan McBride

General Crimes Division Chief

Enclosures (2): Pre-trial Publicity Order; Utah Rule of Professional Responsibility 13-3.

**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**PROTECTION ORDER
RE: PRE-TRIAL AND TRIAL
PUBLICITY**

Case No. 251403576

Judge Tony F. Graf, Jr.

Defendant Tyler James Robinson is charged with one count of aggravated murder and other felonies.

This case has generated and is likely to continue to generate significant pre-trial and trial publicity. That publicity can compromise Defendant Tyler James Robinson's right to due process of law as well as both parties' rights to a fair and impartial jury trial. Pre-trial publicity is of particular concern because it can taint the prospective jury pool.

To protect the parties' fundamental rights, the court, on its own motion, issues the following:

PROTECTION ORDER

Lawyers who have participated, who are now participating, or who will yet participate in the investigation or litigation of this case in any way shall abide strictly by Rule 3.6. of the Utah Rules of Professional Conduct. Rule 3.6 prohibits a lawyer from making "an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter." Utah R. Prof. Cond. 3.6(a).

Lawyers who have participated, who are now participating, or who will yet participate in the investigation or litigation of this case shall not intentionally, knowingly, or recklessly permit a witness, investigator, consultant, staff member, or other member of the prosecution or defense team to make extrajudicial statements which, if made by the lawyer, would violate Rule 3.6. To that end, lawyers participating in the investigation or litigation of this case shall inform all witnesses, investigators, consultants, staff members, or other members of the prosecution or defense teams about the prohibitions contained in this order.

This protection order applies to lawyers who are not participating in the investigation or litigation of this case, but who are associated with the Utah County Attorney's office or associated with defense counsels' firm or firms. *See* Utah R. Prof. Cond. 3.6(d). Court staff is also ordered to not make public statements that would violate the provisions of this order.

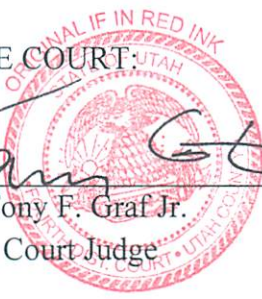
This order does not prohibit lawyers from making statements permitted by Rule 3.6. *See* Utah R. Prof. Cond. 3.6(b)(c).

Dated this 16th day of September, 2025.

BY THE COURT:



Judge Tony F. Graf Jr.
District Court Judge



**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**RULING AND ORDER GRANTING
THE STATE'S MOTION TO
CLARIFY COURT'S PRE-TRIAL
AND TRIAL PUBLICITY ORDER**

Case No. 251403576
Judge Tony F. Graf, Jr.

The court issued a Protection Order Regarding Pre-Trial and Trial Publicity in this case. (Dkt. 23). The order prohibits attorneys who are associated with the prosecution and defense of this case from

intentionally, knowingly, or recklessly permit[ing] a witness, investigator, consultant, staff member, or other member of the prosecution or defense team to make extrajudicial statements which, if made by the lawyer, would violate Rule 3.6. To that end, lawyers participating in the investigation or litigation of this case shall inform all *witnesses*, investigators, consultants, staff members, or other members of the prosecution or defense teams about the prohibitions contained in this order.

(Dkt. 23) (emphasis added).

The State moves to amend or clarify the court's use of the word "witness" as used in the publicity order because it is vague, ambiguous, and overbroad. (Dkts. 167, 204). The State asserts that there are over 3,000 lay witnesses of the alleged homicide. The State does not know if it must inform each potential and possible witness of the prohibitions in the order or whether the order applies only to witnesses who are members of the attorneys' teams, such as investigators or experts.

Due to the potential confusion, the court grants the State's motion and offers the following clarification: The word "witness" as used in the order applies to all witnesses who are part of the

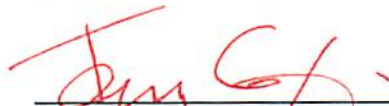
prosecution and defense teams. This includes any witness, including lay witnesses, whom the prosecution or defense has a good faith belief will be called to testify at a hearing or trial.

The court also clarifies that the publicity order, as written, regulates the behavior of attorneys who are associated with the defense team or the Utah County Attorney's Office. It requires the attorneys to abide by Rule 3.6 and, in order to deter non-attorneys from making prejudicial statements, requires the attorneys to *inform* witnesses about the prohibitions in the publicity order. Informing witnesses about the prohibitions in the publicity order is a necessary step toward not intentionally, knowingly, or recklessly permitting witnesses from making prejudicial statements. The publicity order does not regulate the behavior of any person who is not an attorney associated with this case.

This is the order of the court for the matters addressed herein.¹

Dated this 15th day of December, 2025.

BY THE COURT:



Judge Tony F. Graf, Jr.
District Court Judge



¹ Defense counsel represents that they intend to file a motion to amend the publicity order. The court will address defense counsel's motion when it is filed and briefing is completed.

CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

MANUAL EMAIL: KATHRYN NESTER [REDACTED]

MANUAL EMAIL: STACI VISSER [REDACTED]

MANUAL EMAIL: CHAD GRUNANDER [REDACTED]@UTAHCOUNTY.GOV

MANUAL EMAIL: RYAN MCBRIDE [REDACTED]@UTAHCOUNTY.GOV

MANUAL EMAIL: CHRISTOPHER BALLARD [REDACTED]@UTAHCOUNTY.GOV

12/15/2025

/s/ TREENA HANSEN

Date: _____

Signature

Rule 3.6. Trial Publicity.

Effective: 11/1/2005

(a) A lawyer who is participating or has participated in the investigation or litigation of a matter shall not make an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter.

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(b)(7) in a criminal case, in addition to subparagraphs (1) through (6):

(b)(7)(i) the identity, residence, occupation and family status of the accused;

(b)(7)(ii) if the accused has not been apprehended, information necessary to aid in apprehension of that person;

(b)(7)(iii) the fact, time and place of arrest; and

(b)(7)(iv) the identity of investigating and arresting officers or agencies and the length of the investigation.

(c) Notwithstanding paragraph (a), a lawyer may make a statement that a reasonable lawyer would believe is required to protect a client from the substantial undue prejudicial effect of recent publicity not initiated by the lawyer or the lawyer's client. A statement made pursuant to this paragraph shall be limited to such information as is necessary to mitigate the recent adverse publicity.

(d) No lawyer associated in a firm or government agency with a lawyer subject to paragraph (a) shall make a statement prohibited by paragraph (a).

Comment

[1] It is difficult to strike a balance between protecting the right to a fair trial and safeguarding the right of free expression. Preserving the right to a fair trial necessarily entails some curtailment of the information that may be disseminated about a party prior to trial, particularly where trial by jury is involved. If there were no such limits, the result would be the practical nullification of the protective effect of the rules of forensic decorum and the exclusionary rules of evidence. On the other hand, there are vital social interests served by the free dissemination of information about events having legal consequences and about legal proceedings themselves. The public has a right to know about threats to its safety and measures aimed at ensuring its security. It also has a legitimate interest in the conduct of judicial proceedings, particularly in matters of general public concern. Furthermore, the subject matter of legal proceedings is often of direct significance in debate and deliberation over questions of public policy.

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[5] There are, on the other hand, certain subjects that are more likely than not to have a material prejudicial effect on a proceeding, particularly when they refer to a civil matter triable to a jury, a criminal matter or any other proceeding that could result in incarceration. These subjects relate to:

(i) the character, credibility, reputation or criminal record of a party, suspect in a criminal investigation or witness, or the identity of a witness, or the expected testimony of a party or witness;

(ii) in a criminal case or proceeding that could result in incarceration, the possibility of a plea of guilty to the offense or the existence or contents of any confession, admission or statement given by a defendant or suspect or that person's refusal or failure to make a statement;

(iii) the performance or results of any examination or test or the refusal or failure of a person to submit to an examination or test, or the identity or nature of physical evidence expected to be presented;

(iv) any opinion as to the guilt or innocence of a defendant or suspect in a criminal case or proceeding that could result in incarceration;

(v) information that the lawyer knows or reasonably should know is likely to be inadmissible as evidence in a trial and that would, if disclosed, create a substantial risk of prejudicing an impartial trial; or

(vi) the fact that a defendant has been charged with a crime, unless there is included therein a statement explaining that the charge is merely an accusation and that the defendant is presumed innocent until and unless proven guilty.

[6] Another relevant factor in determining prejudice is the nature of the proceeding involved. Criminal jury trials will be most sensitive to extrajudicial speech. Civil trials may be less sensitive. Nonjury hearings and arbitration proceedings may be even less affected. This Rule will still place limitations on prejudicial comments in these cases, but the likelihood of prejudice may be different depending on the type of proceeding.

[7] Finally, extrajudicial statements that might otherwise raise a question under this Rule may be permissible when they are made in response to statements made publicly by another party, another party's lawyer or third persons, where a reasonable lawyer would believe a public response is required in order to avoid prejudice to the lawyer's client. When prejudicial statements have been publicly made by others, responsive statements may have the salutary effect of lessening any resulting adverse impact on the adjudicative proceeding. Such responsive statements should be limited to contain only such information as is necessary to mitigate undue prejudice created by the statements made by others.

[8] See Rule 3.8(f) for additional duties of prosecutors in connection with extrajudicial statements about criminal proceedings.

From: Jeff Gray [REDACTED]@utahcounty.gov>
Sent: Thursday, January 29, 2026 1:16 PM
To: Chad Grunander [REDACTED]@UtahCounty.gov>
Subject: FW: Charlie Kirk Autopsy Report and Media Statements about the Case

From: Jeff Gray
Sent: Thursday, October 9, 2025 4:09 PM
To: [REDACTED]@hcahealthcare.com
Cc: Ryan McBride [REDACTED]@UtahCounty.gov>
Subject: Charlie Kirk Autopsy Report and Media Statements about the Case

As discussed on the phone, it is our understanding that the Timpanogos Trauma Center has requested a copy of the ME's autopsy report for Charlie Kirk. Please find attached a letter giving instructions on media statements by potential witnesses about the Charlie Kirk case. This directive from the court includes, but is not limited to, information from the Charlie Kirk autopsy report. In addition, release of information to media and other unauthorized persons about the autopsy report is strictly prohibited under HIPAA. Please feel free to contact me if you have any questions. Thank you.



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Date: October 9, 2025

Re: Media statements re Tyler Robinson/Charlie Kirk

To all prosecution witnesses in the Charlie Kirk case,

The Utah County Attorney's Office has an ethical obligation to "exercise reasonable care to prevent investigators, law enforcement personnel," and certain others from making public comments which "have a substantial likelihood of materially prejudicing" the trial process in criminal cases. Judge Graf emphasized this duty in a recent court order in this case. This letter is intended to satisfy our obligation to prevent witnesses from making statements to the media that may harm the defendant's right to a fair trial.

At the outset, you should know that you have no obligation to speak with the media. However, if you choose to speak with the media, there are certain topics that you should avoid entirely because they may undermine the right to a fair trial. These topics include:

- Statements about the defendant's character (like calling him evil, depraved, or insulting names);
- Statements about the defendant's criminal history;
- Opinions about the defendant's guilt or proper punishment. Remember, the question of guilt has not been decided yet and the defendant is presumed innocent until he is proven guilty in a trial;
- Statements about any constitutional rights the defendant has asserted – like the right to remain silent, the right to an attorney, and the right to trial. These are rights afforded to all citizens and no one should be punished for asserting them; and
- Any other statements that could risk violating the defendant's right to a fair trial.

Harmful statements made to the media and public have created significant legal issues in high profile cases. These statements can result in the court moving the case to another county, imposing sanctions on prosecutors, and even dismissing the case. We want to do everything we can to avoid these issues in this case. So please carefully consider this guidance and follow it precisely if you choose to speak with the media. Feel free to contact our office with any questions. We also encourage you to consult with an attorney if you choose to speak to the media.

Sincerely,

/s/ Ryan McBride
General Crimes Division Chief